

Never-Filed Summary-Denial Order and Judgment Without Answer or Argument

United States Court of Appeals for the Fourth Circuit

In re Cinder Lake Health Network, Inc., Petitioner

Related district action: *Rhea Calder v. Cinder Lake Health Network, Inc.*

Docket: SYN-CA4-26-WR-4401-CF-SUMMARY-DENIAL-NEVER-FILED

Document code: B05

Hypothetical date: 2026-04-01

Summary-denial order

The formally conforming petition is denied because its included public letter and orders are not accompanied by the comparative protected-material evidence needed to establish a clear and indisputable right.

The panel considers the accepted petition, the public letter, and the district orders. Those materials show what was disclosed and what production was commanded, but they do not establish the protected character and comparative content of the twenty logged items and attachments. The order does not decide that the district waiver ruling is correct; it decides that this petitioner failed to carry the extraordinary-relief burden on the record presented.

Rule 21 answer boundary

The court may deny a petition without inviting an answer. No response order issued, so Calder had no answer obligation.

Rule 21(b)(1) permits denial without requesting an answer. The Court has issued no order requiring Calder to respond, so she has no answer deadline and no answer is before the panel. Summary treatment avoids requiring a respondent to complete a deficient merits presentation that the petitioner was responsible for supporting.

Argument boundary

Local Rule 21 does not create argument here, and no express argument order or calendar date exists.

No express order schedules argument. Local Rule 21's ordinary submission practice does not create a hearing by default, and the panel resolves the accepted petition on the filed materials. No oral advocacy has occurred between acceptance and this summary disposition, and nothing in the docket gave either party a right to a hearing.

No technical-deficiency rationale

The denial is not based on caption, service, trial-judge-copy, or essential-index defects; the accepted petition satisfies those filing checks.

The petition satisfied caption, service, essential-index, and trial-judge-copy requirements. Its index included the public August 21 letter, challenged March 25 order, and preservation orders. This denial therefore rests solely on substantive insufficiency: the petitioner did not supply the public memorandum and privilege-log counterparts or enough item-level comparative evidence to establish a clear and indisputable right.

Substantive threshold

The included letter cannot by itself establish that every compelled item is protected or outside the disclosure's scope.

The letter permits direct review of the public words, but Cinder Lake also must establish privilege, work product, and the relationship between those words and the twenty compelled items and attachments. Without the omitted public counterparts and item-level comparison, the panel cannot conclude that the district court clearly and indisputably erred as to the whole production. That evidentiary failure supports denial without reaching every alternative argument.

Judgment and rehearing

Judgment is entered April 1, 2026. A Rule 40 petition would be due April 15; no mandate issues in this original proceeding.

This judgment is final for this original proceeding on April 1. Rule 40 supplies a fourteen-day rehearing period ending April 15, and no original-proceeding mandate follows. The clerk is directed to send the disposition to the trial judge under Rule 21(b)(7). This denial is entered before the 5:00 p.m. district production deadline, grants no stay, and does not alter the district production command.

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